

1.

CASE #	CASE NAME	HEARING NAME
CVRI2304424	RUIZ vs ECO FARMS AVOCADOS, INC.	HEARING ON FINAL APPROVAL

Tentative Ruling: Appearances requested:

1. Need proposed order/judgment (CMO ¶ H.7-15)
2. Papers have conflicting numbers on settlement administration costs--\$6,250 (moving points and authorities and Edwards Decl) and \$6,650.
3. What will be done with funds from uncashed checks—need to include in proposed order/judgment.
4. Are fees to be split among law firms and did Ruiz and Orozco agree to the split?
5. What amounts will plaintiff's receive from the class/PAGA settlement in addition to the service awards? CMO ¶ H.2(e).
6. No declaration from the settlement administrator. CMO ¶ H.5.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2602804	CHAMBERS vs PACIFIC COAST POOLS, INC.	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: In this construction defect action, defendant Nautilus Insurance Company demurs to the first amended complaint on the grounds that there is a misjoinder of parties, the FAC is uncertain, and each causes of action fails to state a cause of action. Plaintiffs argue that the breach of contract, disgorgement, and negligence causes of action are not asserted against Nautilus. They argue that although a third-party claimant cannot normally sue a tortfeasor's insurer to obtain insurance benefits, they are not doing that, instead their fraud, Unruh Act and declaratory relief claims are based on Nautilus' claims history and improper acts related to it. Nautilus responds that plaintiffs admit they cannot maintain a direct action for insurance coverage or claims handling and the FAC alleges no harm other than this (and that the opposition relies on facts not alleged in the FAC).

Deny request for judicial notice. Overrule demurrer based on uncertainty. Sustain demurrer to first (breach of contract), second (disgorgement), and fourth (negligence) causes of action without leave to amend. Sustain demurrer as to third (fraud), fifth (Unruh Act) and sixth (declaratory relief) causes of action with 30 days' leave to amend.